

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS
AND THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2016-1780 & 2016-1779

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO AND THE
CERTIFICATE TO PRACTICE ADDICTION COUNSELING IN THE STATE OF
COLORADO OF DEBORAH FRENCH, LICENSE NO. LPC 6016, CERTIFICATION NO.
CAC II 7122,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional
Counselor Examiners and the State Board of Addiction Counselor Examiners (together,
"Boards") and Deborah French ("Respondent"), as follows:

1. The Boards have jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor ("LPC") in the State of Colorado on February 25, 2011, having been issued license number LPC 6016, and is currently active in renewal. Respondent was certified to practice as an addiction counselor ("CAC II") in the State of Colorado on April 1, 2010, having been issued certificate number CAC II 7122, and is currently active in renewal. Respondent does not intend to renew her LPC license or her CAC certification.
3. This Order is a full and final resolution of case numbers 2016-1780 and 2016-1779. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. Respondent failed to comply with her Continuing Professional Development ("CPD") requirements during the 2011-2013 renewal cycle.
 - b. Respondent failed to timely update her address with the Boards.

5. By virtue of the admission in paragraph 4 above, Respondent admits and the Boards find that Respondent violated §§12-43-222(1)(b), 12-43-605(1)(a) and 12-43-805(1)(a), C.R.S., and LPC Board Rules 8 and 18, and CAC Board Rules 8 and 17, which state:

§12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article violates this article if the person:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article or rule promulgated pursuant to this article or any order of a board established pursuant to this article.

12-43-605. Continuing professional competency--board rules.

(1)(a) In accordance with section 12-43-603, the board issues a license to practice professional counseling based on whether the applicant satisfies minimum educational and experience requirements that demonstrate professional competency to practice professional counseling. After a license is issued to an applicant, the licensed professional counselor shall maintain continuing professional competency to practice professional counseling.

12-43-805. Continuing professional competency—rules.

(1)(a) In accordance with sections 12-43-803 and 12-43-804, the board issues a license or certificate to practice addiction counseling based on whether the applicant satisfies minimum educational and experience requirements that demonstrate professional competency to practice addiction counseling. After a license or a certificate as a level II or level III addiction counselor is issued to an applicant, the licensed or level II or level III certified addiction counselor shall maintain continuing professional competency to practice addiction counseling.

LPC Rule 8. Reporting Change Of Address, Telephone Number, Or Name.

Licensees shall inform the Division of any name, telephone number or address change within thirty (30) days of such change. Staff shall not change Licensees' information without written notification from the Licensee. Notification via mail, fax, email and the online system is acceptable. Verbal notification is not acceptable.

LPC Rule 18. Continuing Professional Competence. Effective January 1, 2011, licensed professional counselors shall demonstrate continuing professional competence through participation and compliance with the Continuing Professional Development program in order to renew, reinstate or reactivate a license to practice professional counseling in the State of Colorado.

CAC Rule 8. Reporting Change Of Address, Telephone Number, Or Name.

Certificate Holders and Licensees shall inform the Division of any name, telephone number or address change within thirty (30) days of such change. Staff

shall not change Licensees' information without written notification from the Licensee. Notification via mail, fax, email and the online system is acceptable. Verbal notification is not acceptable.

CAC Rule 17. Continuing Professional Competence. Continuing Professional Competence (CPC) means the ongoing ability of a licensed addiction counselors and certified addiction counselors Levels II and III to learn, integrate and apply the knowledge, skill, and judgment to practice according to generally accepted industry standards and professional ethical standards in a designated role and setting.

6. By virtue of the admission in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Boards believe is necessary to protect the public health, safety, and welfare.

ADMONISHMENT

7. On the basis of the findings set forth in paragraphs 4 and 5, the Boards hereby admonish Respondent for violations of §§12-43-222(1)(b), 12-43-605(1)(a) and 12-43-805(1)(a), C.R.S., and LPC Board Rules 8 and 18, and CAC Board Rules 8 and 17. This Order is effective as a Letter of Admonition, set forth by §12-43-224(3)(d), C.R.S. As part of the admonishment, Respondent agrees to the following terms as a Board Order:

CONTINUING EDUCATION

8. If and when Respondent is reinstated as a LPC and/or CAC in the State of Colorado, Respondent shall successfully complete at least 34 hours of Board-approved CPD courses/activities within two (2) years of being reinstated. Respondent must submit a CPD Learning Plan to the Boards for pre-approval of the courses/activities prior to enrolling in any course/activity. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Boards. These hours of CPD completed pursuant to this section shall be required in addition to, and may not be counted toward, the reinstatement requirements, the mandatory CPD requirements for an active Colorado license, or to meet any other licensure requirements in the current or future renewal cycles.

TERMS AND CONDITIONS

9. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

10. All expenses incurred or associated with education or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Boards.

11. In the event Respondent relocates at any time prior to completing the terms of this Order, Respondent shall notify the Boards of the change of address within 30 days of the effective date of such change.

12. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

13. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

14. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

15. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

16. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

17. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

18. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

19. This Order shall be a public record in the custody of the Boards.

20. This Order shall be admissible as evidence at any hearing held before the Boards.

AGREED TO AND ACCEPTED BY:

RESPONDENT


DEBORAH FRENCH
LPC 6016
CAC II 7122

AGREED TO AND ORDERED BY:

**STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR
EXAMINERS AND STATE BOARD OF
ADDICTION COUNSELOR EXAMINERS**


DARCIE MAGNUSON
Program Director

Effective this 31st day of August, 2017.